

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

# CASE OF PUKHOV AND OTHERS v. RUSSIA

*(Applications nos. 59975/13 and 25 others –*
*see appended list)*

JUDGMENT

STRASBOURG

8 June 2023

*This judgment is final but it may be subject to editorial revision.*

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

**In the case of Pukhov and Others v. Russia,**

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 17 May 2023,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and

5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences; and *Tsvetkova and Others*, cited above, §§ 186-88, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect on an appeal against the sentence of detention.

## V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their deprivation of liberty and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11-13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the remainder of the complaints raised by the applicants in applications nos. 39315/18 and 42500/18 and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

# FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, *finds* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the

Convention, and *declares* the remainder of applications nos. 39315/18 and 42500/18 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 8 June 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

| | |
|---|---|
| Viktoriya Maradudina | María Elósegui |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 59975/13<br>12/09/2013 | **Stanislav Sergeyevich PUKHOV**<br>1985 | Davidyan Eleonora Grantovna<br>Moscow | Rally against the conviction of the Pussy Riot group members<br>Moscow<br>17/08/2012 | Article 20.2 § 2 of CAO | fine of RUB 20,000 | Khamovnicheskiy District Court of Moscow<br>12/03/2013 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |
| 2. | 3930/17<br>30/12/2016 | **Valeriy Yuryevich NADEZHDIN**<br>1968 | Zboroshenko Nikolay Sergeyevich<br>Mytishchi | March for Change<br>Moscow<br>12/12/2015 | Article 19.3 § 1 of CAO | fine of RUB 10,000 | Moscow City Court<br>08/07/2016 | Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 12/12/2015 for the sole purpose of drawing up a record of administrative offence,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 3. | 16608/18<br>22/03/2018 | **Dmitriy Viktorovich TOLMACHEV**<br>1970 | Ivanets Vyacheslav Sergeyevich<br>Tbilisi, Georgia | Event to inform voters about A. Navalnyy's activity<br>Irkutsk<br>04/11/2017 | Article 20.2 § 2 of CAO | administrative arrest of 5 days | Irkutsk Regional Court<br>22/11/2017 | | 5,000 |
| 4. | 21537/18<br>30/04/2018 | **Aleksandr Vyacheslavovich TITOV**<br>1977 | Tiunov Sergey Yuryevich<br>Yekaterinburg | Rally to support A. Navalnyy<br>Yekaterinburg<br>07/10/2017 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Sverdlovsk Regional Court<br>05/12/2017 | | 3,500 |
| 5. | 27432/18<br>18/05/2018 | **Rafail Viktorovich SHEPELEV**<br>1970 | Tiunov Sergey Yuryevich<br>Yekaterinburg | Rally to support A.Navalnyy<br>Yekaterinburg<br>07/10/2017 | Article 20.2 § 5 of CAO | 33 hours of compulsory work | Sverdlovsk Regional Court<br>12/12/2017 | | 3,500 |
| 6. | 31917/18<br>21/06/2018 | **Olga Alekseyevna ZENINA**<br>1952 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally to support A. Navalnyy<br>Rostov-on-Don<br>07/10/2017<br><br>Rally to support A. Navalnyy<br>Rostov-on-Don<br>24/12/2017 | Article 20.2 § 6.1 of the CAO<br><br>Article 20.2 § 6.1 of CAO | fine of RUB 10,000<br><br>fine of RUB 10,000 | Rostov Regional Court<br>21/12/2017<br><br>Rostov Regional Court<br>20/03/2018 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of the CAO proceedings | 3,500 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 7. | 39315/18<br>07/08/2018 | **Vladimir Sergeyevich NEMANOV**<br>1996 | Terekhov Konstantin Ilyich<br>Moscow | "Voters' strike" rally<br>Kaliningrad<br>28/01/2018 | Article 20.2 § 8 of CAO | administrative detention of 10 days | Kaliningrad Regional Court<br>12/02/2018 | Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant by the court of first instance was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO | 5,000 |
| 8. | 42500/18<br>30/08/2018<br>and<br>19787/19<br>01/04/2019 | **Tatyana Viktorovna SPORYSHEVA**<br>1976 | 42500/18<br>Zhdanov Ivan Yuryevich<br>Vilnius<br>19787/19<br>Pomazuyev Aleksandr Yevgenyevich<br>Vilnius | Rally to support A. Navalnyy<br>Rostov-on-Don<br>24/12/2017<br>Rally against the pension reform<br>Rostov-on-Don<br>09/09/2018 | Article 20.2 § 6.1 of CAO<br>Article 20.2 § 8 of CAO | fine of RUB 15,000<br>administrative detention of 1 day | Rostov Regional Court<br>07/03/2018<br>Rostov Regional Court<br>09/10/2018 | Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 09/09/2018 and 10/09/2018 as administrative suspect,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of the CAO proceedings | 4,000 |
| 9. | 47782/18<br>21/09/2018 | **Irina Aleksandrovna NEVEROVA**<br>1989 | Pershakova Yelena Yuryevna<br>Moscow | Manifestation to support Mr Navalny's campaign<br>Perm<br>07/10/2017 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Perm Regional Court<br>21/03/2018 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 10. | 49185/18<br>10/10/2018 | **Artem Valeryevich VAZHENKOV**<br>1981 | Zhdanov<br>Ivan Yuryevich<br>Vilnius | Rally in support of A. Navalnyy<br>Tver<br>07/07/2017<br><br>Political manifestation<br>Tver<br>05/05/2018<br><br>Manifestation for fair elections to Mosgorduma<br>Moscow<br>27/07/2019 | Article 20.2 § 5 of CAO<br><br>Article 20.2 § 6.1 of CAO<br><br>Article 20.2 § 6.1 of CAO | fine of RUB 10,000<br><br>administrative detention of 5 days<br><br>fine of RUB 10,000 | Tver Regional Court<br>17/05/2018<br><br>Tver Regional Court<br>17/05/2018<br><br>Moscow City Court<br>24/09/2019 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - all sets of administrative-offence proceedings,<br><br>Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention (i) between 00.30 a.m. on 06/05/2018 and 2.40 p.m. on 07/05/2018 as administrative suspect; and (ii) between 27/07/2019 and 29/07/2019 as administrative suspect, for "drawing up the administrative offence record" (such record compiled on 28/07/2019). | 5,000 |
| 11. | 52537/18<br>24/10/2018 | **Sergey Sergeyevich TSUKASOV**<br>1968 | Sholokhov<br>Igor Nikolayevich<br>Kazan | Mother's Day in Ostankino<br>Moscow<br>11/03/2018 | Article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>06/06/2018 | Art. 6 (1) - lack of impartiality of tribunal - absence of the prosecuting party in the administrative proceedings | 3,500 |
| 12. | 10407/19<br>09/02/2019 | **Ruslan Adamovich MUTSOLGOV**<br>1977 | Sabinin<br>Andrey Vasilyevich<br>Stavropol | Rally against transfer of a part of the territory of the Republic of Ingushetia to the Chechen Republic<br>Magas<br>26/09/2018 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Republic of Ingushetia<br>06/11/2018 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 13. | 18178/19<br>26/03/2019 | **Aleksandra Vladimirovna SEMENOVA**<br>1979 | Pershakova Yelena Yuryevna<br>Moscow | Opposition manifestation "He is not our Tsar"<br>Perm<br>05/05/2018 | Article 20.2 § 8 of CAO | fine of RUB 150,000 | Perm Regional Court<br>26/09/2018 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 5,500 |
| 14. | 21750/19<br>03/04/2019 | **Igor Vladimirovich PUSHKAR**<br>1962 | Sholokhov Igor Nikolayevich<br>Kazan | Rally against the pension reform<br>Omsk<br>09/09/2018 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Omsk Regional Court<br>15/01/2019 | Art. 5 (1) - unlawful deprivation of liberty-arrest, escorting to a police station, detention on 09/09/2018 for the sole purpose of drawing up a record of administrative offence,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 15. | 23746/19<br>15/04/2019 | **Vladimir Anatolyevich PEREKOTIY**<br>1962 | Vasin Vladimir Valeryevich<br>Krasnoyarsk | Opposition rally<br>Krasnoyarsk<br>05/05/2018 | Article 20.2 § 5 of CAO | 30 hours of community work | Krasnoyarsk Regional Court<br>25/10/2018 | Art. 5 (1) - unlawful deprivation of liberty– (i) arrest, escorting to a police station, detention on 05/05/2018 for the sole purpose of drawing up a record of administrative offence; (ii) arrest and detention between 31/01/2021 and 02/02/2021 as administrative suspect, for compiling the administrative offence record in respect of the events of 23/01/2021 (drawn up on 02/02/2021), pending the examination of the case by the first-instance court;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - all sets of the CAO proceedings | 5,500 |
| | | | | Rally against the pension reform<br>Krasnoyarsk<br>09/09/2018 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Krasnoyarsk Regional Court<br>28/03/2019 | | |
| | | | | Rally in support of A. Navalnyy<br>Krasnoyarsk<br>23/01/2021 | Article 20.2 § 8 of CAO | 100 hours of community work | Krasnoyarsk Regional Court<br>01/04/2021 | | |
| | | | | Rally in support of A. Navalnyy<br>Krasnoyarsk<br>31/01/2021 | Article 20.2 § 8 of CAO | fine of RUB 150,000 | Krasnoyarsk Regional Court<br>01/04/2021 | | |
| 16. | 25576/19<br>29/04/2019 | **Yevgeniy Valikhanovich MUSIN**<br>1980 | Peredruk Aleksandr Dmitriyevich<br>St Petersburg | Rally against abusive criminal prosecution<br>St Petersburg<br>28/10/2018 | Article 20.2.2 § 1 of CAO | fine of RUB 20,000 | St Petersburg City Court<br>10/01/2019 | Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 28/10/2018 and 29/10/2018 as administrative suspect,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 17. | 40242/19<br>17/07/2019 | **Vladimir Yuryevich SHIPITSYN**<br>1969 | Mezak<br>Ernest Aleksandrovich<br>Saint-Barthélemy d'Anjou | Rally against abusive criminal prosecution<br>St Petersburg<br>28/10/2018 | Article 20.2.2 § 1 of CAO | fine of RUB 15,000 | St Petersburg City Court<br>17/01/2019 | Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 28/10/2018 and 29/10/2018 as administrative suspect "for a correct and timely determination of the case",<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 18. | 63403/19<br>28/11/2019 | **Anzhela Khusenovna MATIYEVA**<br>1971 | Sabinin<br>Andrey Vasilyevich<br>Stavropol | Rally concerning the regional statute on referenda<br>Magas<br>06/10/2018 | Article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Supreme Court of the Ingushetia Republic<br>11/07/2019 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |
| 19. | 1720/20<br>18/12/2019 | **Vadim Miroslavovich YASKIV**<br>1989 | Memorial Human Rights Centre<br>Moscow | Manifestation for fair elections to Mosgorduma<br>Moscow<br>03/08/2019 | Article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>28/08/2019 | Art. 5 (1) - unlawful deprivation of liberty – arrest, escorting to a police station and detention on 03/08/2019 for the sole purpose of drawing up a record of administrative offence,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 20. | 3878/20<br>20/12/2019 | **Sergey Dmitriyevich SOLOVYEV**<br>1999 | Yatsenko Irina Aleksandrovna<br>Moscow | Opposition manifestation<br>Moscow<br>05/05/2018<br><br>Manifestation for fair elections to Mosgorduma<br>Moscow<br>27/07/2019 | Article 20.2 § 5 of CAO<br><br>Article 20.2 § 8 of CAO | fine of RUB 10,000<br><br>fine of RUB 200,000 | Moscow City Court<br>20/06/2019<br><br>Moscow City Court<br>30/09/2019 | Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention (i) on 05/05/2018, for the sole purpose of drawing up a record of administrative offence; delayed escorting to a police station; and (ii) on 27/07/2019 for the same purpose (administrative-offence record drawn up on 30/07/2019 only),<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings | 4,000 |
| 21. | 6350/20<br>17/01/2020 | **Dmitriy Sergeyevich KNYAZEV**<br>1983 | Memorial Human Rights Centre<br>Moscow | Manifestation in support of I. Golunov<br>Moscow<br>12/06/2019 | Article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>02/08/2019 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |
| 22. | 9088/20<br>03/02/2020 | **Marina Aleksandrovna LUKYANETS**<br>1976 | Zboroshenko Nikolay Sergeyevich<br>Mytishchi | Manifestation for fair elections to Mosgorduma<br>Moscow<br>14/07/2019 | Article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>06/09/2019 | Art. 5 (1) - unlawful deprivation of liberty -- arrest, escorting to a police station, detention on 14/07/2019 for the sole purpose of drawing up a record of administrative offence,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 23. | 15309/20<br>29/02/2020 | **Roman Igorevich MAKSIMOV**<br>1995 | Peredruk Aleksandr Dmitriyevich<br>St Petersburg | Event for fair elections<br>St Petersburg<br>29/06/2019 | Article 20.2.2 § 1 of CAO | fine of RUB 20,000 | St Petersburg City Court<br>12/09/2019 | Art. 5 (1) - unlawful deprivation of liberty - arrest and detention between 6.20 p.m. on 29/06/2019 and 1.20 a.m. on 30/06/2019 for the sole purpose of drawing up a record of administrative offence; no record of administrative arrest compiled,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 24. | 17354/20<br>14/03/2020 | **Darya Aleksandrovna BELYAYEVA**<br>1991 | Kachanov Roman Yevgenyevich<br>Yekaterinburg | Rally against a church construction<br>Yekaterinburg<br>04/06/2019 | Article 20.2 § 5 of CAO | fine of RUB 10,000 | Sverdlovsk Regional Court<br>18/09/2019 | | 3,500 |
| 25. | 17906/20<br>30/03/2020 | **Nikolay Igorevich NIKIFOROV**<br>1995 | Pomazuyev Aleksandr Yevgenyevich<br>Vilnius | Rally against the pension reform<br>St Petersburg<br>09/09/2018 | Article 20.2 § 6.1 of CAO | fine of RUB 10,000 | St Petersburg City Court<br>14/11/2019 | | 3,500 |

[1] Plus any tax that may be chargeable to the applicants.